

Amendment No. 1 to SB1270

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1270*

House Bill No. 1304

by deleting the language "twenty-five (25)" in subdivision (a)(1)(A) in SECTION 1 and substituting "fifty (50)".

AND FURTHER AMEND by deleting "Employee Retirement Income and Security Act of 1974 (ERISA), 29 U.S.C. § 1002(1)" in subdivision (a)(1) in SECTION 1 and substituting "Employee Retirement Income and Security Act of 1974 (ERISA) (29 U.S.C. § 1002(1))".

AND FURTHER AMEND by deleting "Public Health Service Act (PHS Act), 42 U.S.C. 300gg–91(a)(2)" in subdivision (a)(1) in SECTION 1 and substituting "Public Health Service Act (PHS Act) (42 U.S.C. § 300gg–91(a)(2))".

AND FURTHER AMEND by deleting "ERISA, 29 U.S.C. § 1002(7)" in subdivision (a)(1)(A) in SECTION 1 and substituting "ERISA (29 U.S.C. § 1002(7))".

AND FURTHER AMEND by deleting subsection (c) in SECTION 1 and substituting:

(c) To the extent such information is available to the health benefit plan issuer and is relevant to the request made under subsection (b), a report provided pursuant to subsection (b) must include the following information for the thirty-six-month period preceding the date of the request, for the entire period of coverage, or for the period of time specified in the request, whichever period is shortest:

- (1) Aggregate paid claims experience by month, including claims experience for medical, dental, and pharmacy benefits, as applicable;
- (2) Total premium or premium equivalent earned by month;
- (3) Total number of covered employees on a monthly basis by coverage tier, including whether coverage was for:

- (A) An employee only;
- (B) An employee with dependents only;
- (C) An employee with a spouse only; or
- (D) An employee with spouse and dependents; and

(4) An aggregate report of all claims exceeding seventy-five thousand dollars (\$75,000).

AND FURTHER AMEND by deleting subsection (f) in SECTION 1 and substituting:

(f) A plan, plan sponsor, or plan administrator may use information in a written claims experience report provided under this section only as permitted or required by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) (42 U.S.C. § 1320d et seq.) and its implementing regulations.

AND FURTHER AMEND by adding the following new subsection at the end of SECTION 1:

(h) This section applies to the extent not preempted by ERISA.

AND FURTHER AMEND by deleting SECTION 13 and substituting:

SECTION 13. Tennessee Code Annotated, Section 56-5-102(3), is amended by deleting the subdivision and substituting:

(3) "Commercial risk insurance" means insurance within the scope of this part that is not personal risk insurance, including insurance on every kind of farm property or farm risk that is not personal risk insurance, including farm premises, buildings, machinery, equipment, motor vehicles, livestock, and other personal property used in farming operations;

AND FURTHER AMEND by inserting the following as a new SECTION 14 immediately preceding the existing SECTION 14, and by redesignating the existing SECTION 14 and remaining bill sections accordingly:

SECTION 14. Tennessee Code Annotated, Section 56-5-102(7), is amended by deleting the subdivision and substituting:

(7) "Personal risk insurance" means property and casualty insurance that provides:

(A) Insurance on one (1) to four (4) family dwelling units, including mobile homes;

(B) Individual insurance on household goods in dwellings, mobile homes, apartments, or other residential facilities;

(C) Insurance on every kind of farm property or farm risk, including farm premises, buildings, machinery, equipment, motor vehicles, livestock, and other personal property used in farming operations, unless insured on a commercial risk insurance policy;

(D) Insurance on private passenger nonfleet motor-driven vehicles, not used for hire, which are used for personal, farm, or family needs. The motor-driven vehicles include pickups, station wagons, vans, and vehicles with fewer than four (4) wheels;

(E) Insurance on pleasure watercraft that are used for personal, farm, or family needs; and

(F) Insurance sold in connection with and incidental to rental agreements for a period not to exceed ninety (90) days;

AND FURTHER AMEND by deleting from the effective date section the language "15 through 19" and substituting "16 through 20"; and deleting the language "13 and 14" and substituting "13 through 15".